



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

HB 2117: natural resource conservation board; fund

GRIFFIN FLOOR AMENDMENT

1. Provides parameters for defining of geographic natural resources areas.
2. States each board member may hold office until their successor is appointed.

ADDITIONAL COW
GRIFFIN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2117
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 28-2413, Arizona Revised Statutes, is amended to
3 read:

4 28-2413. Environmental special plates

5 A. The department shall issue environmental special plates. The
6 environmental special plates shall have the same basic color and design as
7 the environmental license plates issued on or before December 31, 1992,
8 except that the department may make minor alterations of environmental
9 special plates to make the plates more reflective and readable during the
10 daylight and nighttime hours.

11 B. Of the \$25 fee required by section 28-2402 for original
12 environmental special plates and for renewal of environmental special
13 plates, \$8 is a special plate administration fee and \$17 is an
14 environmental plate annual donation.

15 C. The department shall deposit, pursuant to sections 35-146 and
16 35-147, all special plate administration fees in the state highway fund
17 established by section 28-6991 and shall deposit the environmental plate
18 annual donations in the environmental special plate fund established by
19 section 41-6013 for disbursement by the state ~~and department~~ NATURAL
20 RESOURCE CONSERVATION BOARD for environmental education programs.

21 Sec. 2. Section 41-6011, Arizona Revised Statutes, is amended to
22 read:

23 41-6011. State natural resource conservation board;
24 membership; powers and duties

25 A. The state natural resource conservation board is established
26 consisting of the following members who are residents of this state:

1 1. Eight members who are from different geographic natural resource
2 areas as defined by ~~a statewide organization that represents all natural~~
3 ~~resource conservation districts in this~~ THE state NATURAL RESOURCE
4 CONSERVATION BOARD. [GEOGRAPHIC NATURAL RESOURCE AREAS AS DEFINED BY THE
5 BOARD SHALL BE CONTIGUOUS. THE BOARD SHALL PRIORITIZE MAJOR LAND
6 RESOURCES, TYPES OF CROPS GROWN AND OTHER SHARED LAND FEATURES WHEN
7 DEFINING THE GEOGRAPHIC NATURAL RESOURCE AREAS.] Four members shall be
8 appointed by the governor, two members shall be appointed by the president
9 of the senate and two members shall be appointed by the speaker of the
10 house of representatives. The members appointed pursuant to this
11 paragraph shall meet the following criteria:

12 (a) At least six of the members must be elected supervisors for a
13 natural resource conservation district.

14 (b) Not more than two members may be appointed supervisors from a
15 soil and water conservation district.

16 (c) At least one member shall be a member of the executive board of
17 a statewide organization that represents all natural resource conservation
18 districts in this state.

19 2. Three members who are appointed by the governor from any of the
20 following and who serve at the pleasure of the governor:

21 (a) The state land commissioner or state land commissioner's
22 designee.

23 (b) The director of the Arizona department of agriculture or the
24 director's designee.

25 (c) The state forester or the state forester's designee.

26 (d) The director of the Arizona game and fish department or the
27 director's designee.

28 B. The board shall elect a chairperson from among its members. The
29 chairperson must be a member who represents a natural resource
30 conservation district or soil and water conservation district. [EACH
31 MEMBER REPRESENTING A GEOGRAPHIC NATURAL RESOURCE AREA MAY HOLD OFFICE
32 UNTIL THE MEMBER'S SUCCESSOR IS APPOINTED.]

33 C. The initial members of the board who are appointed pursuant to
34 subsection A, paragraph 1 of this section shall assign themselves by lot
35 to terms of one, two and three years in office. All subsequent members
36 serve three-year terms. The chairperson of the board shall notify the
37 governor's office of these terms.

38 D. If a member's term as a supervisor expires while serving on the
39 board, that member may not serve out the member's term as a board member.
40 A replacement shall be appointed from the same geographic NATURAL resource
41 area to fulfill the remainder of that member's term.

42 E. Board members shall be reimbursed for expenses as prescribed by
43 title 38, chapter 4, article 2 while attending board meetings.

44 F. The board may appoint or contract for an administrative officer,
45 a secretary and such other assistants as may be required, assign their
46 duties, define their powers and determine the amount of bond required of

1 any assistant entrusted with monies or property. The compensation of all
2 ~~such~~ THE assistants shall be determined pursuant to section 38-611.

3 G. The board shall adopt a seal, which shall be judicially noticed,
4 and shall hold public hearings, keep records of all proceedings and annual
5 records of district operations, adopt orders and rules and perform other
6 acts as are necessary to carry out this chapter.

7 H. The board shall:

8 1. Offer appropriate assistance to the supervisors of districts in
9 carrying out their powers and programs.

10 2. Keep the supervisors of each district informed of the activities
11 and experiences of other districts and of relevant information from other
12 states, and facilitate cooperation and interchange of advice, experience
13 and program opportunities between districts.

14 3. Coordinate the programs of the several districts insofar as
15 possible by advice and consultation.

16 4. Require the supervisors of each district to file with the board
17 annually any audits and the records of the operations of the district for
18 the preceding year in the form and detail as the board prescribes.

19 5. Secure the cooperation and assistance of the United States, its
20 agencies and agencies of this state, in the work of districts as local
21 units of state government with special expertise concerning land, soil,
22 water and natural resources management within the boundaries of the
23 district, as the board deems for the best interest of ~~the~~ THIS state.

24 6. Disseminate information throughout ~~the~~ THIS state concerning the
25 activities and program of districts.

26 7. Meet at least quarterly to receive updates from the board's
27 administrative officer regarding any relevant issue or matter necessary to
28 carry out this chapter, provide guidance to the administrative officer and
29 vote on any matters requiring a decision by the board.

30 8. Assist a district when the district is cooperating or
31 coordinating with a federal agency.

32 9. Assist districts with developing conservation action or
33 district-wide plans.

34 10. Adopt administrative rules that the board deems necessary and
35 proper to carry out this chapter.

36 I. The board may remove a district supervisor from office if the
37 board determines, after reasonable notice and an impartial hearing, that
38 the supervisor is guilty of misfeasance, malfeasance or nonfeasance in
39 office. For the purposes of this subsection, "nonfeasance" includes the
40 failure to attend three consecutive meetings of district supervisors
41 without reasonable excuse.

42 J. The board, pursuant to chapter 4, article 4 of this title, may
43 contract for or employ professional and administrative services.
44 Contracts for professional services are exempt from chapter 23 of this
45 title.

46 Sec. 3. Section 41-6013, Arizona Revised Statutes, is amended to
47 read:

1 41-6013. Environmental special plate fund; distribution

2 A. The environmental special plate fund is established and is
3 administered by the board consisting of monies received pursuant to
4 section 28-2413.

5 B. Subject to legislative appropriation, the board shall distribute
6 ~~\$5,000~~ NOT MORE THAN \$10,000 annually to each natural resource
7 conservation district with an established education center for the purpose
8 of developing and implementing an environmental education program that is
9 conducted in a balanced manner, that is based on current scientific
10 information and that includes a discussion of economic and social
11 implications.

12 C. The fund established in this section is exempt from the
13 provisions of section 35-190 relating to lapsing of appropriations. On
14 notice from the board, the state treasurer shall invest and divest monies
15 in the fund as provided by section 35-313, and monies earned from
16 investment shall be credited to the fund.

17 D. The appropriated monies shall only be used for the designated
18 purposes specified in statute.

19 Sec. 4. Retention of members

20 Notwithstanding section 41-6011, Arizona Revised Statutes, as
21 amended by this act, all persons serving as members of the state natural
22 resource conservation board on the effective date of this act may continue
23 to serve until the expiration of their normal terms. All subsequent
24 appointments shall be as prescribed by statute.

25 Enroll and engross to conform

26 Amend title to conform

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